Terms and conditions

Deriv UAE Creator

Version U26|01
Last updated 12/10/2026

Table of contents

1. Interpretation and rules of privity 3
2. Creator-led services and campaign management 6
3. Financial promotion and advertising controls 6
4. Publication, live period, and emergency takedown 10
5. Financial milestones and payment rules 11
6. Ownership, intellectual property, and usage rights 12
7. Confidentiality and data protection 13
8. Warranties, agency liability, and indemnities 13
9. Cancellation, termination, and liability caps 16
10. Miscellaneous and mandatory workflow restrictions 17

Schedule 1 — Compliance standards 19

Deriv UAE Creator - Terms and Conditions

These Deriv UAE Creator Terms and Conditions (the "**Creator Terms**") establish the core legal and regulatory compliance framework for all digital advertising, social media promotions, and influencer marketing campaigns executed with Deriv Capital Contracts & Currencies L.L.C ("**Deriv**"), a limited liability company registered in Dubai, United Arab Emirates under registration number 2279721, licensed and regulated by the UAE Capital Market Authority as a Category 1 Trading Broker for Over-the-Counter Derivatives Contracts and Currencies Spot Markets and Financial Products Dealer (licence 20200000243) and as a Category 5 Financial Consultant (licence 20200000199).

These Creator Terms are automatically incorporated by reference into, and form an indivisible, legally binding part of, the Influencer Campaign Form (the "Campaign Form") executed and submitted by the party identified as the Counterparty in that form (the "**Counterparty**"). Submission of the Campaign Form constitutes absolute acceptance of these Creator Terms.

Together, the Campaign Form, these Creator Terms, Schedule 1, the Campaign Inputs, and any Side Letter Acknowledgement form the "**Agreement**". Deriv and the Counterparty are collectively the "**Parties**" and individually a "Party".

1. Interpretation and rules of privity

1.1. Definitions

1.1.1. **Applicable Requirements** means all laws, regulations, regulatory guidance, advertising codes, financial promotions rules, platform rules, international sanctions, anti-bribery rules, and privacy requirements applying to the campaign, Campaign Content, target territory, Counterparty, or Named Creator. This includes the Resolution, the Rulebook, the Media Law, and any requirement, condition, direction, or guidance issued by the CMA or the Media Council.

1.1.2. **Approved Account** means each social media platform, account, handle, or channel identified in the Campaign Form as approved for publication of the Campaign Content. An account may only be an Approved Account if it is registered with the Media Council and, where the Content Classification is Band 3, is also a Registered Channel.

1.1.3. **Approved Concept** means the creator-led concept, outline, or script approved by Deriv in writing for a Video Deliverable.

1.1.4. **Campaign Content** means all content created, performed, posted, or supplied for the campaign, including each video, image, audio track, caption, text, draft, edit, and associated material.

1.1.5. **Campaign Inputs** means the objectives, product information, target audience, mandatory facts, specific disclosures, risk warnings, prohibited claims, tracking links, codes, assets, and other compliance guardrails identified in the Campaign Form or supplied by Deriv in writing.

1.1.6. **Compliant First Draft** means a complete first draft that materially follows the Approved Concept and Campaign Inputs and is reasonably capable of assessment.

1.1.7. **Deliverable Fee** means the fee allocated to an individual Video Deliverable in the Campaign Form.

1.1.8. **Emergency Instruction** means an instruction issued by Deriv under Clause 4.2.2 requiring immediate correction, suspension, or removal of Campaign Content.

1.1.9. **Licence Period** means the period stated in Clause 6.2 or the Campaign Form during which Deriv may use a Video Deliverable.

1.1.10. **Named Creator** means the individual performer identified in the Campaign Form who personally creates, appears in, and publishes the Campaign Content. Where the Counterparty is an individual contracting for their own creator services, the Counterparty is the Named Creator, and any obligation on the Counterparty to procure or ensure the Named Creator's compliance is a direct obligation of the Counterparty.

1.1.11. **Side Letter Acknowledgement** means the acknowledgement in the form appended to the Campaign Form, accepted by the Named Creator where the Counterparty is not the Named Creator.

1.1.12. **Video Deliverable** means one approved audiovisual asset and the publication placements expressly stated for it in the Campaign Form.

1.1.13. **Working Day** means a day other than a Saturday, Sunday, or public holiday in the United Arab Emirates.

1.1.14. **Advertiser Permit** means a valid permit issued by the Media Council authorising the holder to provide advertising or media content via social media or other digital means.

1.1.15. **CMA** means the UAE Capital Market Authority, successor to the Securities and Commodities Authority.

1.1.16. **Content Classification** means the classification recorded in the Campaign Form as Band 1, Band 2 or Band 3, determined by what the Named Creator will publish:

1.1.16.1. Band 1 (Brand & Product Content) — Campaign Content consisting of material supplied or approved by Deriv, factual information about Deriv, and instruction in the use of Deriv's own platform and services.

1.1.16.2. Band 2 (General Education) — Campaign Content explaining markets or trading mechanics generally, containing no named financial product, instrument or asset class, no commentary on any market, no view, conclusion, expectation, or suggestion as to any course of action, and no figure capable of being read as performance, returns or outcomes.

1.1.16.3. Band 3 (Financial Recommendations/Opinions) — Campaign Content constituting a Financial Recommendation, or containing the Named Creator's own view, conclusion, or analysis concerning a financial product, market or instrument.

1.1.17. **Financial Recommendation** has the meaning given in Article 1 of the Resolution.

1.1.18. **Finfluencer Registration** means the Named Creator's current registration with the CMA as a provider of Financial Recommendations under Article 4 of the Resolution, including any condition or restriction attached to it.

1.1.19. **Media Council** means the UAE Media Council. Media Law means Federal Decree-Law No. (55) of 2023 regarding Media Regulation, its executive regulation, and Cabinet Resolution No. (42) of 2025, each as amended or replaced.

1.1.20. **Registered Channel** means a platform, account, handle or channel that the Named Creator has notified to the CMA as a channel through which they provide Financial Recommendations, and which is covered by the Finfluencer Registration.

1.1.21. **Resolution** means Chairman's Resolution No. (10/R.M) of 2025 on the Regulation of Finfluencer.

1.1.22. **Rulebook** means the Regulations Manual of the Financial Activities adopted by Chairman's Decision No. (13/Chairman) of 2021, each as amended or replaced.

1.2. **Order of precedence**. If there is a direct conflict, the order of priority is:

1.2.1. Schedule 1 (UAE compliance standards), which prevails over every other document in all circumstances;

1.2.2. A formal written amendment signed by authorised corporate signatories of both Parties;

1.2.3. The Campaign Form;

1.2.4. The Side Letter Acknowledgement, as between Deriv and the Named Creator;

1.2.5. These Creator Terms; and

1.2.6. The Campaign Inputs.

Campaign Inputs may supplement but never reduce a requirement in Schedule 1.

1.3. **Personal performance and key person rules**. This Agreement requires the explicit personal performance of the Named Creator. The Counterparty shall ensure that the Named Creator personally performs all services and controls the Approved Account. The Counterparty must not substitute a creator, performer, publisher, account, or channel without Deriv's prior written approval and an executed amendment.

1.4. Where the Counterparty is not the Named Creator, Deriv has no obligation to approve any Approved Concept, approve publication, or pay any amount until the Named Creator has accepted the Side Letter Acknowledgement and Deriv has recorded that acceptance. Publication before that acceptance is an unauthorised publication for the purposes of Clause 9.2.

1.5. **Content Classification**. The Campaign Form records the Content Classification for the campaign. The Counterparty must ensure the Named Creator publishes no Campaign Content outside that classification. Publishing content of a higher classification than the one recorded is an unauthorised publication for the purposes of Clause 9.2 and a material breach, whether or not the content is otherwise compliant. A disclaimer does not alter the classification of content.

1.6. **Advertiser Permit** as a condition precedent. Deriv has no obligation to supply Campaign Inputs, approve an Approved Concept, approve publication, or pay any amount unless the Named Creator holds a valid Advertiser Permit, every Approved Account is registered with the Media Council, and Deriv has verified and recorded both. This applies to every Content Classification. The Counterparty must not permit the Named Creator to publish Campaign Content at any time when the Advertiser Permit is not valid or has expired.

1.7. **Finfluencer Registration** as a condition precedent, Band 3. Where the Content Classification is Band 3, Clause 1.6 applies and, in addition, Deriv has no such obligation unless the Named Creator holds a valid Finfluencer Registration covering every Approved Account, and Deriv has verified and recorded it. The Counterparty must not permit the Named Creator to create or publish Band 3 Campaign Content at any time when the Finfluencer Registration is not valid, has expired, is suspended or cancelled, or does not cover the Approved Account. Publication at any such time is an unauthorised publication for the purposes of Clause 9.2 and a material breach.

2. Creator-led services and campaign management

2.1. **Co-creative approval workflow**. Deriv will supply the Campaign Inputs. The Counterparty must ensure that the Named Creator proposes an authentic concept in their own voice and personally performs the services. The Counterparty remains responsible for the Named Creator and anyone it engages. Unless Deriv agrees otherwise in writing, the Counterparty must obtain written approval of the Approved Concept before filming. Deriv may request changes to address accuracy, regulatory compliance, brand safety, or production feasibility.

2.2. **Included revisions**. Unless the Campaign Form states otherwise, each Deliverable Fee includes concept development, filming, editing, captioning, disclosure integration, publication on one Approved Account, two standard revision rounds, the required live period, and native analytics evidence. Content corrections needed because the Counterparty or Named Creator failed to follow the Approved Concept or Campaign Inputs do not count towards the two revision rounds and must be corrected at the Counterparty's expense.

2.3. **Exclusivity and commercial relationship**. The engagement is non-exclusive unless the Campaign Form explicitly states a limited competitor restriction. The Counterparty must promptly disclose any conflicting engagements involving competitive online trading or financial services. The Counterparty is an independent contractor and is solely responsible for its personnel, insurance, taxes, and operational costs. Nothing creates an employment, partnership, or joint venture relationship.

3. Financial promotion and advertising controls

3.1. **Responsibility for content and statements**. Campaign Content must be original, accurate, honest, professionally produced, consistent with the Named Creator's genuine experience, and strictly compliant with the Campaign Inputs and Applicable Requirements. It must not be misleading, exaggerated, or likely to create unrealistic expectations about trading profits, losses, or Deriv's services. Deriv is responsible for the legal accuracy of factual product claims and mandatory risk warnings that it specifically supplies in writing.

The Counterparty and Named Creator are strictly responsible for reproducing them faithfully, and for every addition, visual element, interpretation, or deviation they introduce.

3.2. **Mandatory disclosures**. Each Video Deliverable must:

3.2.1. Clearly identify the commercial relationship using #ad or the exact local-language disclosure specified by Deriv, prominently at the very beginning of the caption or post text before a viewer must select "more";

3.2.2. Deploy the platform's paid-partnership or branded-content settings where available;

3.2.3. Include a clear, uninterrupted in-video disclosure, both visually and audibly, where required by Deriv or local regulations;

3.2.4. Display or state each approved financial risk warning in the exact wording, font size, prominence, and duration specified by Deriv; and

3.2.5. Target only the approved geographic audiences and age parameters.

3.3. **Advice and age restrictions**. The Counterparty and Named Creator shall not provide personalised trading or investment advice in Campaign Content, livestreams, comments, text replies, or direct messages. They must not boost, whitelist, or pay to distribute Campaign Content unless approved in the Campaign Form. They must not target, or knowingly make Campaign Content appealing to, anyone under the age of eighteen (18).

3.4. **Prohibited and conditionally permitted depictions.**

3.4.1. **Absolutely prohibited**. Campaign Content must not:

3.4.1.1. Contain any forward-looking statement, including any forecast, prediction, expectation, target, or projection; any statement as to the future price, level, value, direction, or performance of any financial product, instrument or market; or any recommendation to buy, sell, or hold. This prohibition applies irrespective of the Content Classification, irrespective of whether the Named Creator holds a Finfluencer Registration, and irrespective of any disclaimer;

3.4.1.2. Guarantee or imply profit, easy money, financial success, or a risk-free trading environment;

3.4.1.3. Depict trading as gambling, a primary source of income, or a shortcut to luxury lifestyle financing;

3.4.1.4. Use misleading urgency, fear, or pressure;

3.4.1.5. Make unapproved claims about regulators, market conditions, or competitors, or use a regulator's name or logo in any manner suggesting endorsement; or

3.4.1.6. Contain any incorrect or misleading statement, or any statement capable of affecting the market value of a financial product or of influencing a person's decision to invest.

3.4.2. **Permitted only with Deriv's prior express written approval**, and only where the content contains nothing prohibited by Clause 3.4.1 and carries every disclosure required by Schedule 1. Campaign Content may:

3.4.2.1. Display or describe an account balance, profit or loss figure, trade result or portfolio value, provided it is accurate, is not misleading, states the period it covers and the date as at which it was accurate, displays no account number, account name or personally identifiable information, and is not presented as indicating what any person may expect to achieve;

3.4.2.2. Reference trading signals, copy-trading, managed accounts or third-party strategy services, provided Deriv has confirmed in writing that the service referenced raises no separate licensing requirement; and

3.4.2.3. Compare returns to those of another asset class, product, or savings alternative, provided the comparison relies on sources that are valid, current, and reliable, cites those sources, and omits nothing material to the comparison including costs, expenses, fees, liquidity, volatility, and tax treatment.

3.4.3. Nothing in Clause 3.4.2 permits a forward-looking statement. Where content permitted by Clause 3.4.2 is framed, captioned, titled or presented so as to convey an expectation about future performance, it is prohibited by Clause 3.4.1.1.

3.5. **Prior approval rule**. The Counterparty must submit each Video Deliverable for Deriv's written approval before publication. The Counterparty must not publish, release, or repurpose a Video Deliverable unless Deriv has approved that exact version in writing. Silence or delay is never approval. This clause cannot be waived, varied or disapplied by Deriv or by any Deriv employee, because Article 6(2) of the Resolution requires Deriv to review the content and confirm that it does not breach applicable legislation before publication. Approval of an Approved Concept is not approval of a Video Deliverable. Campaign Content must not be amended after approval, including after publication, without Deriv's prior written approval.

3.6. **Audience interaction**. Where the deliverables require the Named Creator to interact with the public, including responding to post comments or direct messages, or conducting live streams, the Named Creator must remain strictly factual, non-promotional, and compliant with all Campaign Inputs. The Named Creator is strictly prohibited from answering user queries regarding specific investment returns, trading strategies, or onboarding troubleshooting in comments or direct messages. Any unauthorised financial guidance provided in interactive threads constitutes an immediate material breach.

3.7. **UAE regulatory obligations**. The Counterparty must ensure that the Named Creator:

3.7.1. Maintains a valid Advertiser Permit for the whole period during which Campaign Content is created, published or publicly accessible, keeps every Approved Account registered with the Media Council, displays the permit number on each Approved Account as the Media Council requires, and complies with the Media Council's content standards;

3.7.2. Where the Content Classification is Band 3, maintains a valid Finfluencer Registration for that period and renews it in accordance with Article 4(5) of the Resolution, and publishes Band 3 Campaign Content only on a Registered Channel;

3.7.3. Notifies Deriv in writing within two (2) Working Days of the Advertiser Permit or the Finfluencer Registration being suspended, cancelled, lapsing, expiring, or becoming subject to any new condition or restriction, and of any CMA or Media Council enquiry, complaint or proceeding concerning the Named Creator;

3.7.4. Notifies Deriv in writing before the character of their content changes, including before they begin publishing market commentary, analysis, or their own views concerning financial products, whether or not in connection with Deriv. Deriv may reclassify the campaign, require it to be suspended, or terminate it;

3.7.5. Keeps a record of every Financial Recommendation they issue, and provides the CMA with the data, documents, and information supporting a Financial Recommendation within the period the CMA specifies, notifying Deriv on the day any such request is received;

3.7.6. Attends the training programmes the CMA specifies and complies with the CMA's professional code of conduct and ethics; and

3.7.7. Discloses in the Campaign Content every interest, relationship, holding, and benefit required by Article 5 Third of the Resolution and by Schedule 1 Part H, and updates those disclosures promptly if circumstances change.

3.8. Livestreams and unscripted formats. A livestream, unscripted question-and-answer session, podcast recorded live, or any other format in which Campaign Content cannot be submitted for approval before publication is prohibited unless the Campaign Form expressly permits it and both of the following apply: Deriv has approved a written run-sheet in advance, and a Deriv representative with authority to require immediate termination of the broadcast is present throughout. Clause 3.5 is not satisfied by approval of a run-sheet.

3.9. **Links**. Only the tracking links, codes, and destination URLs supplied in the Campaign Inputs may be used. They must not be shortened, redirected, cloaked, wrapped, or substituted, must not be placed behind an intermediary landing page, and must not point to any third party offering Deriv services.

3.9.1. Campaign Content may carry an affiliate or referral link only where the Campaign Form expressly states that it may. Where it does: one campaign-specific link supplied by Deriv may be used, and no other; the link may appear only on an Approved Account which, where the Content Classification is Band 3, is a Registered Channel; and the disclosures required by Schedule 1 Part H.4 must be present.

3.9.2. Campaign Content must not state or imply that the Named Creator benefits from any person opening an account, depositing funds, depositing a greater amount, or trading more frequently or in greater volume.

3.10. Public distribution only; no introducing. Campaign Content must be directed at the public through channels that address the public generally. It must not be directed to any specific person or persons, whether by telephone, mail, text message, direct message, or any other means. The Counterparty must ensure that the Named Creator does not: approach or introduce any particular person to Deriv; act as any person's point of contact with Deriv; or assist any person in completing an application, verification or onboarding process with

Deriv. Those activities require a separate licence from the CMA which neither Party holds for the purposes of this Agreement.

4. Publication, live period, and emergency takedown

4.1. **Publication and metric authenticity**. The Counterparty must ensure the Named Creator publishes each approved Video Deliverable within the window specified in the Campaign Form, keeps it publicly accessible for the required live period, and provides authentic native-platform analytics exports. Metrics, views, clicks, and engagement must not be artificially manipulated or simulated. The Counterparty must supply the live URL of each published Video Deliverable within twenty-four (24) hours of publication.

4.2. Takedown and modification rights

4.2.1. **Grounds**. Deriv may at any time instruct the Counterparty or Named Creator to modify, suspend, geo-block, or permanently remove any Campaign Content, including where Deriv is required to act by a regulator, court, or platform; where the Campaign Content presents a legal, sanctions, fraud, compliance, or material reputational risk; where Deriv considers it necessary to protect its brand; or where the regulatory or country-risk status of a relevant jurisdiction changes. Grounds additionally include a price, figure or market statement in the Campaign Content ceasing to be current; the Advertiser Permit or Finfluencer Registration ceasing to be valid or to cover an Approved Account; and the Campaign Content falling outside the Content Classification.

4.2.2. **Emergency instructions**. Where Deriv states that an instruction under Clause 4.2.1 is urgent, it is an Emergency Instruction. An Emergency Instruction is valid if sent from a designated Deriv compliance address to the Counterparty's notice email, and, where a mobile number is nominated in the Campaign Form or the Side Letter Acknowledgement, also sent to that number. The Counterparty must acknowledge within thirty (30) minutes and complete the action within two (2) hours of acknowledgement, and in any event within four (4) hours of transmission.

4.2.3. **Standard instructions**. For any other instruction under Clause 4.2.1, the Counterparty must comply within twenty-four (24) hours of transmission.

4.2.4. **Standing platform authority**. The Counterparty grants, and shall procure that the Named Creator grants, Deriv a standing authority to request removal or restriction of Campaign Content directly from the relevant platform, and shall provide any consent or delegated access the platform requires. Deriv's exercise of this authority is not itself a breach by the Counterparty.

4.2.5. **Consequences of non-compliance**. Failure to meet Clause 4.2.2 or 4.2.3 is a material breach. Forfeiture under Clause 4.3 applies only where the failure is wilful, repeated, or causes Deriv actual regulatory, platform, or legal detriment; otherwise, amounts already earned remain payable.

4.2.6. **Preservation before removal**. Before removing Campaign Content, the Counterparty must ensure a complete copy, and the analytics available at that time, are supplied to Deriv. Removal does not discharge any retention obligation under Clause 7.2.

4.3. Financial impact of takedowns.

4.3.1. **Removal not caused by the Counterparty or Named Creator**. Where Deriv requires removal for a reason not caused by a breach by the Counterparty or Named Creator, including a change in regulatory or country-risk status, amounts already earned remain payable, and the remaining retention instalment becomes payable at the end of the original live period once analytics up to the time of removal are supplied.

4.3.2. **Removal caused by the Counterparty or Named Creator**. Where removal results from their regulatory breach, non-compliance with risk disclosures, unauthorised edits, fraud, or misconduct, no unpaid amount for that Video Deliverable is earned, and any unearned advances must be refunded within three (3) Working Days. Removal because the Advertiser Permit or Finfluencer Registration lapsed, expired, was suspended or was cancelled, or because the Campaign Content fell outside the Content Classification, is a removal under this clause.

4.3.3. **Platform-initiated removal**. Removal initiated by the platform and not attributable to a breach by the Counterparty or Named Creator is treated under Clause 4.3.1.

5. Financial milestones and payment rules

5.1. **Payment structure**. The specific payment structure, fee breakdown, and milestone percentages for each Video Deliverable are set out in the applicable Campaign Form. Unless otherwise specified in the Campaign Form, each Video Deliverable is earned separately based on the following milestones:

5.1.1. **Publication milestone**. The first payment percentage specified in the Campaign Form becomes payable upon verified publication, when Deriv confirms that the approved Video Deliverable was posted by the Named Creator on the Approved Account within the agreed window, matches the approved version in all material respects, contains all mandatory risk warnings and disclosures, and remains publicly accessible and compliant for an initial seventy-two (72) hour verification period. No amount is payable under this milestone unless Deriv holds a record of its approval of that exact version under Clause 3.5.

5.1.2. **Retention verification milestone**. The remaining balance specified in the Campaign Form becomes payable when Deriv confirms that the Video Deliverable remained publicly accessible and compliant for the complete required live period; was not altered without approval; the final analytics evidence was supplied; and no metrics manipulation or compliance investigations remain unresolved.

5.2. **Verification and processing**. Deriv will pay an earned amount within seven (7) Working Days after the later of the applicable verification milestone and receipt of a valid invoice, if required. Payment is strictly subject to satisfactory identity verification, KYC checks, sanctions screening, and invoice audits. Deriv may withhold or set off any disputed, unearned, or potentially non-compliant funds while it investigates a campaign incident.

5.3. **The fixed deliverable fee**. Expenses and taxes include all operational costs, equipment, agency fees, and expenses unless the Campaign Form explicitly approves an itemised expense. The Counterparty is solely responsible for its own taxes, social contributions, and corporate duties. Payment to the Counterparty or the

approved payee designated in the Campaign Form fully discharges Deriv's financial obligations under this Agreement.

5.4. **Nature of the fee**. Each Deliverable Fee is consideration for the effort the Counterparty and the Named Creator expend in marketing Deriv's financial services on Deriv's behalf, and for the rights granted under Clause 6. No part of any Deliverable Fee is calculated by reference to the number of persons who open an account with Deriv, the amount any person deposits, or the volume or frequency of any person's trading.

6. Ownership, intellectual property, and usage rights

6.1. **Ownership and licence**. The Counterparty or its licensors retain ownership of the Campaign Content. On payment in full of the Deliverable Fee for a Video Deliverable, the Counterparty grants Deriv, and shall procure that the Named Creator grants Deriv, an exclusive, worldwide, irrevocable, royalty-free, sublicensable licence to use, reproduce, edit, adapt, distribute, and display that Video Deliverable and any element of it, for the media, territory, and Licence Period set out in Clause 6.2 or the Campaign Form. To the extent permitted by law, the Counterparty and the Named Creator waive all moral rights and similar personal rights in the Campaign Content worldwide. Deriv may sublicense these rights to its group companies and service providers solely to execute the associated campaigns.

6.2. **Licence period and permitted use**. The Licence Period is twelve (12) months from first publication unless the Campaign Form states otherwise. Deriv may make reasonable technical edits, including cropping, resizing, subtitling, translating, or reformatting, provided this does not materially distort the Named Creator's message or create a misleading endorsement. Paid media amplification, whitelisting, dark posts, broadcast, out-of-home placement, third-party advertising, use after the Licence Period, or materially different use is strictly prohibited unless the Campaign Form explicitly grants it. Deriv will not re-publish a Video Deliverable after any price, figure or market information in it has ceased to be current without re-dating it or re-approving it under Clause 3.5.

6.3. **Archival licence and name and likeness consents**. Deriv retains a perpetual, worldwide, royalty-free licence to store and use Campaign Content internally or with its professional advisers for legal, regulatory, evidential, compliance monitoring, and archival purposes. The Counterparty must procure that the Named Creator grants the right to use the Named Creator's name, image, likeness, voice, performance, handle, and public biography in connection with the Video Deliverable and for the licensed uses.

6.4. **Third-party material clearances**. The Counterparty must disclose and clear all third-party music, stock footage, imagery, locations, and trademarks for every agreed use. Pre-existing creator material remains owned by its existing owner, but the Counterparty grants the rights needed to use it as embedded in the final Video Deliverable. Deriv grants a limited, revocable, non-transferable licence to use Deriv logos and trademarks solely for the performance of this campaign.

7. Confidentiality and data protection

7.1. The Counterparty and Named Creator must keep strictly confidential all non-public information about Deriv, its group companies, products, retail customers, marketing strategies, pricing models, internal systems, security protocols, and Campaign Inputs. They may use it only to perform this Agreement and disclose it only to personnel who strictly need it and are bound by equivalent confidentiality duties. On request or when the Agreement ends, they must return or securely delete confidential information. This duty continues for three (3) years after termination. Each Party must comply with applicable data-protection requirements. Deriv may process identity, contact, KYC, payment, and campaign analytics data under its applicable corporate privacy notice.

7.2. **Records and retrievability**. Deriv is required by the Rulebook to retain the records relating to this Agreement for not less than ten (10) years with backup copies for the same period, to be able to recover any record from archive within three (3) business days, and to document and archive all marketing material published on its behalf. Accordingly:

7.2.1. The Counterparty must retain the Campaign Content, each version approved by Deriv, the Approved Concept, the sources and calculations supporting any factual or numerical statement, the analytics evidence, and all campaign correspondence for not less than ten (10) years from publication;

7.2.2. The Counterparty must provide any such record to Deriv within three (3) Working Days of request, including after this Agreement has ended; and

7.2.3. Clause 7.1 does not require deletion of anything the Counterparty must retain under this clause, and the obligation in Clause 7.1 to delete confidential information on request is subject to it.

7.3. **Personal data**. Each Party must comply with Federal Decree-Law No. (45) of 2021 on the Protection of Personal Data and any executive regulations made under it, to the extent applicable. Where the Counterparty supplies Deriv with personal data of third parties, including audience comments or messages, it must have a lawful basis for doing so and must not supply more than Deriv requests.

8. Warranties, agency liability, and indemnities

8.1. **Core representations and counterparty warranties**. The Counterparty warrants and represents that it and the Named Creator:

8.1.1. Have the full authority, capacity, corporate rights, and active account controls needed to perform this Agreement;

8.1.2. Will comply strictly with the Approved Concept, Campaign Inputs, and all Applicable Requirements;

8.1.3. Will provide completely accurate analytics and will not use bots, click farms, or deceptive practices;

8.1.4. Are not restricted by applicable international sanctions and will notify Deriv promptly of any status change;

8.1.5. Will not offer, request, or accept a bribe, kickback, or improper financial advantage;

8.1.6. Will not use generative artificial intelligence (AI) tools, deep-fakes, or voice cloning to replicate or simulate the Named Creator's likeness, performance, or voice within the Campaign Content without Deriv's prior explicit written authorisation, and will not use generative AI to depict any other real person, or to generate or simulate Deriv platform interfaces, data, or performance figures;

8.1.7. Will promptly notify Deriv of any event, legal claim, account restriction, shadow-ban, or conflict that could materially affect the campaign or Deriv's reputation;

8.1.8. Are not a party to any active litigation, criminal prosecution, regulatory investigation, or arbitration that could adversely affect performance of the services. The Counterparty must notify Deriv in writing within three (3) Working Days if the Counterparty or Named Creator becomes a party to any legal or regulatory proceeding;

8.1.9. Confirm that the Named Creator is at least 18 years of age, or the age of majority where resident, if higher;

8.1.10. Confirm that neither the Counterparty, the Named Creator, nor any beneficial owner is a sanctioned person, resident in a comprehensively embargoed jurisdiction, or an undisclosed politically exposed person;

8.1.11. Have not been subject to a regulatory sanction or platform ban for advertising or financial-promotion breaches;

8.1.12. Confirm that the Approved Account was not purchased and its following has not been artificially acquired; and

8.1.13. Have no undisclosed personal or financial relationship with a Deriv employee.

8.1.14. Confirm that the Named Creator holds a valid Advertiser Permit, that the permit number and expiry date stated in the Campaign Form are correct, that every Approved Account is registered with the Media Council, and that the permit number is displayed as the Media Council requires;

8.1.15. Confirm that, where the Content Classification is Band 3, the Named Creator holds a valid Finfluencer Registration, that the registration number, route and expiry stated in the Campaign Form are correct, that every Approved Account is a Registered Channel, and that no condition or restriction attaches to it other than as disclosed to Deriv in writing;

8.1.16. Confirm that, where the Named Creator is registered as an accredited financial analyst under Article 3(1) of the Resolution, the Named Creator does not work for Deriv or any other entity licensed by the CMA, and will notify Deriv immediately if that ceases to be the case;

8.1.17. Confirm that the Named Creator has disclosed to Deriv every interest, holding, relationship, employment, agency, advisory role, referral arrangement, affiliate arrangement and related-party interest that Article 5 Third of the Resolution requires to be disclosed, and will notify Deriv of any change within two (2) Working Days;

8.1.18. Will comply with Clause 3.7 and Clause 7.2;

8.1.19. Will attend the training programmes the CMA specifies and comply with the CMA's professional code of conduct and ethics and any further requirement the CMA imposes on providers of Financial Recommendations; and

8.1.20. Will comply with the Media Council's content standards and with the conditions attaching to the Advertiser Permit.

8.2. **Corporate and agency liability guarantee**. Where the Counterparty is a company, corporation, or talent management agency:

8.2.1. The Counterparty acts as a primary obligor and unconditionally and irrevocably guarantees the full, timely, and faithful compliance by the Named Creator with all terms, content standards, brand safety guardrails, disclosures, risk warnings, and covenants set out in this Agreement; and

8.2.2. Any act, omission, deviation, or breach of these terms by the Named Creator shall be treated as a direct, joint, and several material breach by the Counterparty itself under this Agreement.

8.2.3. A guarantee under this clause does not relieve the Named Creator of any obligation under the Resolution, the Media Law, or any Applicable Requirement that applies to the Named Creator personally. The Counterparty must not hold itself out as able to provide Financial Recommendations, or to publish advertising content, through the Named Creator's Finfluencer Registration or Advertiser Permit.

8.3. 8.3 Indemnification. The Counterparty must defend, indemnify, and hold harmless Deriv, its group companies, officers, employees, agents, and successors against all losses, liabilities, claims, fines, regulatory penalties, costs, and reasonable legal fees arising from a third-party claim or regulatory action connected with:

8.3.1. Infringement or misuse of intellectual property, publicity, or privacy rights in the Campaign Content;

8.3.2. A breach of Clauses 3, 4, 6, 7, or 8 by the Counterparty or the Named Creator;

8.3.3. A failure to comply with Applicable Requirements; or

8.3.4. Fraud, gross negligence, wilful misconduct, or material misrepresentation by the Counterparty or Named Creator.

8.4. **Indemnity carve-out**. The Counterparty's indemnity obligations under this Clause 8 do not apply to any losses, fines, or regulatory claims to the extent arising directly from the unaltered wording of mandatory financial risk warnings or factual product assets explicitly provided to the Counterparty by Deriv in writing. Nor do they apply to any penalty imposed on Deriv for a failure of Deriv's own obligations under Article 6 of the Resolution or Article 8 of the Rulebook's Business Practice provisions, except to the extent the failure was caused by the Counterparty's or the Named Creator's breach, misstatement, or failure to disclose.

9. Cancellation, termination, and liability caps

9.1. **Deriv convenience cancellation fees**. Deriv may cancel a Video Deliverable for convenience by written notice or email. If neither the Counterparty nor the Named Creator is in material breach:

9.1.1. Before a Compliant First Draft is submitted, no cancellation fee is payable, but Deriv will reimburse pre-approved, non-refundable third-party expenses reasonably incurred before notice;

9.1.2. After a Compliant First Draft is submitted but before final approval, Deriv will pay 50% of that Video Deliverable's total Deliverable Fee;

9.1.3. After final approval but before publication, Deriv will pay 70% of that Video Deliverable's total Deliverable Fee; and

9.1.4. After publication, standard milestone rules apply.

9.2. **Suspension**. Deriv may immediately suspend performance, payment processing, or the visibility of any deliverable if it reasonably believes there is a breach, operational delay, regulatory non-compliance, unauthorised publication, metrics manipulation, sanctions risk, severe reputational danger, or insolvency. Suspension is not termination, and Deriv may lift it at any time. Amounts already earned at the date of suspension remain payable once the matter is resolved, unless the Agreement is subsequently terminated under Clause 9.3.

9.3. Termination

9.3.1. **Termination by Deriv**. Deriv may terminate this Agreement by written notice where any ground in Clause 9.2 applies, and the Counterparty has not remedied it within seven (7) Working Days of notice, or where the ground is incapable of remedy.

9.3.2. **Immediate termination without cure**. Notwithstanding Clause 9.3.1, Deriv may immediately terminate this Agreement or cancel any pending Campaign Form by written notice, without a cure period, if:

9.3.2.1. Deriv reasonably determines that the Counterparty, the Named Creator, or an Approved Account creates an unacceptable legal, regulatory, sanctions, or country-risk exposure in any jurisdiction;

9.3.2.2. The Counterparty or Named Creator fails to comply with an Emergency Instruction issued under Clause 4.2.2; or

9.3.2.3. Any statement or representation made during intake or screening regarding the Named Creator's residence, operational location, or primary audience distribution is found to be materially inaccurate.

9.3.3. **Termination by the Counterparty**. The Counterparty may terminate only if Deriv materially breaches this Agreement and does not remedy the breach within fourteen (14) Working Days after detailed written notice.

9.3.4. **Payment on termination**. On termination under Clause 9.3.2.1 or 9.3.2.2, Deriv's sole financial liability is to settle fees fully earned before the date of notice. On termination under Clause 9.3.2.3, Clause 4.3.2 applies. On termination under Clause 9.3.1 or 9.3.3, Clause 4.3 applies according to the cause of termination.

9.4. **Liability capping**. Neither Party is liable for indirect, incidental, consequential, special, or exemplary losses, including loss of profit, data, or business use. Subject to liabilities that cannot lawfully be limited under British Virgin Islands law, Deriv's aggregate liability under this Agreement is strictly capped at the total cumulative Deliverable Fees specified in the Campaign Form. This cap does not limit the Counterparty's refund obligations, indemnity liabilities, liability for confidentiality or data breaches, or liability for fraud, gross negligence, or wilful misconduct. Subject to liabilities that cannot lawfully be limited under the laws of the United Arab Emirates, Deriv's aggregate liability under this Agreement is strictly capped at the total cumulative Deliverable Fees specified in the Campaign Form. This cap does not limit the Counterparty's refund obligations, indemnity liabilities, liability for confidentiality or data breaches, or liability for fraud, gross negligence, or wilful misconduct.

10. Miscellaneous and mandatory workflow restrictions

10.1. **Email approvals and operational thresholds**. Routine campaign contacts listed in the Campaign Form may approve creative concepts and drafts, and agree standard operational matters, including minor revision instructions, captions, specific posting hours, tracking links, and emergency takedown requests, by standard email exchange. However, an email exchange cannot add a new Video Deliverable, change a Deliverable Fee, alter cancellation payment percentages, expand public usage rights, substitute the Named Creator, or modify liability caps and indemnities. Those fundamental variations strictly require a formal amendment document executed by digital signature by the authorised corporate legal signatories of both Parties. No email exchange may waive Clause 1.5, 1.6, 1.7, 3.4.1, 3.5, 3.7 or 3.10, change the Content Classification, or waive any requirement of Schedule 1.

10.2. **Public corrections**. If this Agreement is terminated, or content is removed, due to a regulatory non-compliance event, misrepresentation, or unauthorised financial claim made by the Counterparty or Named Creator, Deriv preserves the contractually agreed right to issue public corrective statements across its corporate domains, press releases, or social media channels as necessary to correct the public record and protect its regulatory standing.

10.3. **Notices**. Formal legal notices must be sent to the notice emails designated in the Campaign Form and are deemed received when transmitted, provided no non-delivery failure message is generated.

10.4. **Assignment**. Deriv may assign this Agreement to a Deriv group company, or in connection with a corporate reorganisation or transfer of business assets, provided the assignee holds the CMA licences required to perform Deriv's obligations under Article 6 of the Resolution. The Counterparty must not assign, transfer, or subcontract its obligations without Deriv's prior written consent.

10.5. **Governing law and jurisdiction**. This Agreement, its interpretation, and all non-contractual obligations arising out of or in connection with it are governed exclusively by the laws of the British Virgin Islands. The

Parties will first try in good faith to resolve any dispute through direct written negotiations. If unresolved after thirty (30) days, the courts of the British Virgin Islands shall have exclusive jurisdiction to settle any dispute or legal claim.

10.6. **Electronic acceptance**. The Parties consent to entering into this Agreement by electronic means and agree that submission of the Campaign Form with the acceptance box affirmatively selected has the same effect as a signed written agreement. Deriv's electronic records of submission, including date and time, network address and device information, the version of the Creator Terms displayed, and the acceptance selections made, are admissible as evidence of the terms agreed and conclusive absent manifest error. Deriv will send a copy of the completed Campaign Form to the Counterparty's notice email on submission.

10.7. **Survival and third parties**. Clauses 6, 7, 8, 9.3, and 10 survive termination or expiry. Clause 7.2 survives for the full retention period it specifies. Deriv contracts for itself. Where a Deriv group company benefits from Clauses 6, 7, or 8, Deriv may enforce those clauses on its behalf. No event beyond a Party's reasonable control excuses compliance with Clauses 3.2, 3.3, 3.4, 3.5, 3.7, 3.10, or 4.2.

10.8. **Language**. This Agreement is made in English. Where an Arabic version is provided, and there is any conflict, the Arabic version prevails.

Schedule 1 — UAE compliance standards

To the Deriv UAE Creator Terms and Conditions (version 2026.1)

Part A — Status and purpose

A.1 This schedule specifies the disclosures, wording, placement, prominence and duration that Clause 3.2 requires, and defines what Clauses 3.3, 3.4, 3.6, 3.9, 3.10 and 6.4 cover.

A.2 This schedule may impose obligations additional to those in the Creator Terms, because certain requirements derive directly from the Resolution, the Rulebook and the Media Law. Where it lists or illustrates, the lists are not exhaustive.

A.3 Under Clause 1.2, this schedule prevails over every other document in the Agreement in all circumstances. Campaign Inputs may supplement it but may never reduce, qualify or disapply a requirement in it.

A.4 Parts B, C, D, E, F, H, J, K, L and M apply to all Campaign Content. **Parts G and I apply only where the Content Classification is Band 3**.

A.5 Where a requirement in this schedule and a platform rule cannot both be satisfied, the Counterparty must not publish and must notify the Deriv authorised campaign contact before the publication window opens.

Part B — The #ad disclosure

Specifies Clause 3.2.1.

B.1 Wording. The disclosure required by Clause 3.2.1 is #ad, unless the Campaign Inputs specify a local-language equivalent, in which case that wording must be used instead.

B.2 Position in the caption. It must be the first element of the caption or post text, positioned so that it remains visible before a viewer must select "more", "see more", or any equivalent expansion control.

B.3 Position in video. For a Video Deliverable, #ad or Paid partnership with Deriv must additionally appear as on-screen text within the first three (3) seconds.

B.4 Persistence. The disclosure must persist in any re-share, repost, stitch, duet, remix, Story, or pinned comment featuring the Campaign Content, published by the Named Creator or by any account they control.

B.5 The #ad disclosure is separate from the risk warning in Part D and the identification in Part C. None satisfies another.

Part C — Identification of Deriv and the Named Creator

Specifies Clause 3.2.6. All Content Classifications.

C.1 Every piece of Campaign Content must state, on each Approved Account on which it is published: Deriv's full legal name and legal status; that Deriv is licensed and regulated by the CMA, with the licence category and numbers; the financial services Deriv is licensed to provide; and that the Named Creator is a marketing partner and is neither Deriv nor a Deriv employee, representative, or agent.

C.2 Wording. Reproduced exactly:

Paid partnership with Deriv Capital Contracts & Currencies L.L.C, licensed and regulated by the UAE Capital Market Authority as a Category 1 Trading Broker for Over-the-Counter Derivatives Contracts and Currencies Spot Markets and Financial Products Dealer (licence 20200000243) and as a Category 5 Financial Consultant (licence 20200000199). I am a marketing partner. I am not Deriv and I do not speak for Deriv.

C.3 Advertiser Permit. The Named Creator's Advertiser Permit number must be displayed on each Approved Account in the manner the Media Council requires. It is a standing requirement of the account, not a per-item disclosure.

C.4 Language. Where the Campaign Content is in Arabic or any language other than English, the wording in C.2 and D.1 must be used in the translation supplied in the Campaign Inputs. The Counterparty must not translate it.

Part D — The risk warning

Specifies Clause 3.2.4. All Content Classifications.

D.1 The approved financial risk warning, required in every format and reproduced exactly, is:

High-risk product. CFDs and leveraged derivatives carry a significant risk of loss and you can lose your capital. Nothing here is a forecast of future performance. Do not assume this is profitable or indicates expected future performance. Seek a professional opinion from a CMA-authorised financial consultant before investing, in line with your own financial capacity and objectives.

D.2 This wording must be reproduced verbatim. The Counterparty and Named Creator must not paraphrase, abbreviate, split, reorder, translate or add to it without Deriv's prior written approval, and must not present it in a manner that undermines or contradicts it.

D.3 The phrase "this is not investment advice", and any statement to similar effect, must not appear in Campaign Content governed by this schedule.

D.4 Short formats. Where the Campaign Inputs supply a condensed on-screen form of D.1 for a short-form video, that condensed form may be used on screen, and the full wording at D.1 must appear in the caption or description. The condensed form never replaces the full wording.

D.5 Where Campaign Content displays a balance, result or figure permitted under Clause 3.4.2(a), the warning at D.1 or its condensed form must appear in the same frame, or immediately adjacent to the figure in the caption.

Part E — Placement, prominence, duration and legibility

Specifies Clauses 3.2.3 and 3.2.4. Applies to Parts B, C, D and F.

E.1 Placement

Format	Where the risk warning must appear
Caption or post text	At the end of the caption
Static image	As text within the image itself
Video	As on-screen text, displayed throughout the video
Separate description field	Within the description text
Audio only	Spoken at the start, and in the episode description

E.2 Video is cumulative. For a Video Deliverable, the on-screen warning and the caption warning are both required.

E.3 Duration. On-screen text carrying the risk warning must be displayed throughout the video. Where it is shown as a discrete card or frame rather than persistently, it must remain on screen for no less than four (4) seconds and be legible at the platform's default playback speed.

E.4 Prominence. The warning must not be disguised, diminished or obscured. It must be presented prominently, clearly and intelligibly, at a font size at least equal to the predominant font size used elsewhere in the same content, and must appear together with any stated benefit of the product or service.

E.5 Legibility. Text must have sufficient colour contrast against its background and must not be obscured by platform interface elements, including captions, buttons, progress bars, and comment overlays. Text positioned within an area the platform overlays with its own furniture, or at the extreme lower edge of the frame, does not satisfy this requirement.

E.6 Transitions. The warning must not be hidden or curtailed by cuts, transitions, animation or motion effects.

E.7 Band 3. The requirements of Part G are subject to G.12 on placement, which is stricter than this Part.

Part F — Conditional disclaimers

Required only where the Campaign Content has the stated feature. Each must be reproduced exactly.

F.1 AI-generated or AI-altered people. Where Campaign Content includes an AI-generated person or avatar, or AI-altered footage of a real person, and Deriv has authorised it under Clause 8.1.6:

This material is created in part using artificial intelligence (AI) technology.

Placement: as on-screen text within the first three (3) seconds, followed by the risk warning, or in the caption where clearly visible.

F.2 Illustrative charts. Where a chart is a visual aid carrying no real data:

The chart data displayed is for illustrative purposes only.

F.3 Real market data. Where a chart or figure displays actual market or price data, a source citation is required in place of F.2, naming the actual source — for example, "Source: Deriv MT5".

F.4 Payment methods. Where Campaign Content mentions any method of funding a Deriv account or withdrawing from one:

This payment method might be unavailable in your country. Please check your cashier.

F.5 Third-party trademarks. Where Campaign Content includes any third-party trademark, logo or brand asset:

Any third-party trademarks are used strictly for illustrative or descriptive purposes and do not imply any sponsorship, affiliation, or endorsement of Deriv or the Named Creator by the owner of such trademarks.

F.6 YouTube. Campaign Content published to YouTube must additionally carry, in the description box, the description text, entity disclosures and audience labelling in the exact form provided in the Campaign Inputs, including any labelling required in the video title or first frame.

F.7 Balances, results and figures. Where Campaign Content displays or describes a balance, profit or loss figure, trade result or portfolio value under Clause 3.4.2(a):

The figures shown are historical, relate to [period], and are accurate as at [date and time]. They are not an indication of future performance and do not indicate what any person may achieve.

The risk warning at D.1 must appear with the figure under D.5. No account number, account name or personally identifiable information may be visible.

F.8 Comparisons. Where Campaign Content compares returns to another asset class, product or savings alternative under Clause 3.4.2(c):

Comparison sources: [source], as at [date]. Costs, expenses, fees, liquidity, volatility of capital and return, and tax treatment differ between the products compared.

F.9 Third-party services. Where Campaign Content references a trading signal, copy-trading, managed account or third-party strategy service under Clause 3.4.2(b), and that service is not provided by Deriv:

[Service] is operated by [provider] and is not provided by Deriv.

Part G — Band 3 disclosures

Applies only where the Content Classification is Band 3. Every requirement in this Part derives from Article 5 of the Resolution. Deriv has no discretion to add to it or remove from it.

G.1 The Named Creator. Full name; whether registered as a financial analyst or a qualifying individual, with the relevant qualification or experience; and the CMA registration number.

G.2 Participants. The name, regulatory status, employer or affiliation, and relevant qualifications or experience of any other person who participated in preparing the content.

G.3 Dating of prices. The date, time and time zone of any price, rate, level or market figure stated.

G.4 Dating of the recommendation. Separately from G.3, the date, time and time zone at which the Financial Recommendation was made.

G.5 Audience and horizon. The audience for which the content is intended, and whether it relates to a particular time period.

G.6 Risk. That the content concerns a high-risk financial product, and that the audience should not assume it is profitable or indicates expected future performance.

G.7 Professional advice. That the audience should seek a professional opinion from a CMA-authorised financial consultant before investing, in line with their own financial capacity and objectives.

G.8 Fact and opinion. Which statements are factual, which are statistics, and which are the Named Creator's interpretation, estimate or personal experience.

G.9 Sources and method. Every source relied on, stated plainly where a source is not reliable; and how the audience may easily access the methodology and key assumptions used, or a statement that a proprietary model was used.

G.10 Objectivity. The content must be free of bias and exaggeration, use current data, and present a balanced view of risks and benefits. Historical or out-of-date information must be dated as such.

G.11 Prior recommendations. Where the Named Creator has made a Financial Recommendation on the same financial product, asset, service or issuer within the previous twelve (12) months: the date it was published, who participated, any target price, the market price at that time, the direction, and the period for which it was valid.

G.12 Placement. Every requirement in this Part must appear in the Campaign Content itself, on each Approved Account on which it is published. A profile biography, a pinned comment, a link, or text behind an expansion control does not satisfy this Part. Where the Campaign Inputs supply a format split across caption, on-screen text and spoken audio, that split governs placement, and no item may be omitted from the content as a whole.

G.13 Comparisons. Where products or services are compared, all material differences must be addressed, including objectives, costs, expenses, liquidity, collateral or insurance, volatility of capital or return, tax treatment, and fees. F.8 applies in addition.

G.14 Links and footnotes. Must not impede the audience's understanding of the Financial Recommendation or cause confusion.

Part H — Conflicts and interests

All Content Classifications.

H.1 Campaign Content must prominently disclose, in the language of the content:

H.1.1 every payment, fee, free product, reimbursement, commission, referral fee, affiliate benefit and other consideration received from Deriv, whether material or non-material and whether direct or indirect;

H.1.2 whether the Named Creator holds any financial product related to Deriv, or has any other interest or benefit in the subject of the content;

H.1.3 any employment, agency or advisory relationship with Deriv, including whether the Named Creator, any participant or a related party was a manager or chief executive of Deriv in the previous twelve (12) months, holds an agreement for financial or advisory services in force for twelve (12) months or more, or holds any agreement concerning the issuing of the Financial Recommendation; and

H.1.4 any other relationship or circumstance that could affect objectivity, directly or indirectly.

H.2 "Related party" has the meaning given in Article 1 of the Resolution and includes the Named Creator's minor children, any person with whom the Named Creator has an arrangement to own or influence the financial product concerned, and any company the Named Creator owns which holds thirty per cent (30%) or more of it.

H.3 Disclosures under this Part must be updated promptly where circumstances change.

H.4 Where the Campaign Content carries an affiliate or referral link under Clause 3.9.1, the disclosure must identify both the fee payable for the Campaign Content and the commission or benefit the Named Creator earns on sign-ups through that link. One does not satisfy the other. The disclosure must appear in the Campaign Content itself and not only in a profile or a linked page. The approved wording is:

> I am paid for this content, and I also earn commission if you sign up through my link.

Part I — Third-party recommendations

Applies only where the Content Classification is Band 3.

I.1 Where Campaign Content publishes, summarises, extracts from or adapts a Financial Recommendation made by a third party, it must:

I.1.1 identify the third party clearly and state whether that party is licensed by the CMA, by an equivalent regulator, or by neither;

I.1.2 state the date and time the original was first published;

I.1.3 disclose any relationship or conflict that could undermine the objectivity of the original;

I.1.4 where it is a summary or extract, say so, remain complete and not misleading, identify the source, and ensure the source is free to access; and

I.1.5 where the original has been modified, detail each modification and link to the free original.

I.2 A third-party recommendation that is itself forward-looking must not be published, summarised or adapted, because Clause 3.4.1(a) applies to the content as published irrespective of its author.

Part J — What Clause 3.4 covers

Illustrative and non-exhaustive. These are examples of what Clause 3.4 already prohibits or conditions; they do not narrow it.

J.1 Forward-looking statements — prohibited by Clause 3.4.1(a) — include: any statement that a price, level or market is going to, likely to, expected to, due to, or set to move in any direction; target prices and price objectives; "watching for a move", "next leg", "due a correction", "this is just the start"; a chart annotated with a projected, extrapolated or dotted future path; technical or fundamental analysis presented as reaching a conclusion about what happens next; a hashtag to that effect; and any recommendation to buy, sell, hold, enter, exit, accumulate, or reduce. The prohibition applies to captions, titles, thumbnails, on-screen text, spoken audio and comments alike.

J.2 Describing what has already happened, and why, is not a forward-looking statement. The test is whether the content conveys an expectation about the future to a reasonable viewer; however, the statement is framed grammatically.

J.3 Guaranteeing or implying profit — prohibited by Clause 3.4.1(b) — includes hashtags such as #GuaranteedProfits, #EasyMoney, #RiskFree or #PassiveIncome used in relation to trading, and claims that trading is easy, requires no skill, replaces employment, or produces consistent income.

J.4 Depicting trading as gambling — prohibited by Clause 3.4.1(c) — includes casino imagery, playing cards, dice, roulette wheels, slot machines, chips and "lucky" motifs, and, in audio, casino, slot-machine or gambling sound effects, gaming sounds such as level-up jingles, coin sounds and arcade effects, and cash-register or "cha-ching" sounds.

J.5 A shortcut to luxury lifestyle financing — prohibited by Clause 3.4.1(c) — includes supercars, yachts, mansions, private jets, cash stacks and designer goods presented as an outcome of trading.

J.6 Misleading urgency, fear or pressure — prohibited by Clause 3.4.1(d) — includes limited-availability claims ("only X spots left", "closing in 2 hours"), countdowns and fear-of-missing-out framing. A general call to action such as "Sign up", "Learn more" or "Find out more" is not urgency, provided no time limit or consequence for inaction is stated or implied.

J.7 Unapproved claims about regulators — prohibited by Clause 3.4.1(e) — includes use of a regulator's name or logo in any manner suggesting endorsement or approval of Deriv, the Named Creator or any product.

J.8 Balances, results and figures are conditionally permitted by Clause 3.4.2(a) and require Deriv's prior express written approval. The category includes actual, demonstration-account, historical, illustrative and simulated figures, and extends to screenshots, screen recordings and platform footage in which any balance, position, profit or loss is visible. Where approved: no account number, account name or personally identifiable information may be visible; the period and the date as at which the figures were accurate must be stated; F.7 and D.5 apply. A figure captioned, titled or presented so as to convey an expectation about future performance is prohibited by Clause 3.4.1(a) under Clause 3.4.3.

J.9 Signals, copy-trading, managed accounts and third-party strategy services are conditionally permitted by Clause 3.4.2(b) and require Deriv's written confirmation that the service raises no separate licensing requirement. F.9 applies.

J.10 Comparisons of returns to another asset class, product or savings alternative are conditionally permitted by Clause 3.4.2(c). F.8 and, for Band 3, G.13 apply.

J.11 Charts must represent realistic market movement. Uninterrupted upward movement is prohibited unless it is factual and sourced under F.3. A projected or extrapolated path is a forward-looking statement under J.1.

J.12 Appeal to minors — prohibited by Clause 3.3 — includes animation styles, characters, toys, music and cultural references associated with children, and publication to any account whose stated or apparent audience is children.

Part K — Audience interaction

Specifies Clauses 3.6 and 3.10. All Content Classifications.

K.1 The queries the Named Creator is prohibited from answering under Clause 3.6 include any question concerning:

K.1.1 investment returns, expected profit or performance;

K.1.2 trading strategy, signals, entry or exit points, or instrument selection;

K.1.3 account opening, verification, deposits, withdrawals or platform troubleshooting; or

K.1.4 the suitability of any Deriv product for the person asking.

K.2 Such queries must be directed to Deriv's official support channels and, where they seek investment advice, to a CMA-authorised financial consultant. The Named Creator must not offer to assist privately, by direct message, or off-platform.

K.3 The Named Creator must not state a Financial Recommendation, price target, figure, forward-looking statement or claim in a comment, reply or direct message that was not in the approved Video Deliverable. A comment may take the Campaign Content outside its Content Classification for the purposes of Clause 1.5.

K.4 Under Clause 8.1.7, the Named Creator must notify Deriv within one (1) Working Day of becoming aware of any comment or message alleging fraud, loss, misconduct or regulatory breach in connection with Deriv.

K.5 The Named Creator must not delete, hide or moderate comments in a manner that removes accurate statements about risk, or that removes a complaint or an allegation of a compliance failure.

K.6 Nothing in this Part permits the Named Creator to respond to an individual in a manner prohibited by Clause 3.10.

Part L — Third-party material, Deriv marks, links and codes

Specifies Clauses 3.9 and 6.4.

L.1 Platform music libraries. Music and sound provided through a platform's in-app library is licensed for personal, non-commercial use only. It is not cleared for Campaign Content unless the platform's licence expressly permits commercial or branded use, and the Counterparty must evidence that permission on request.

L.2 Third-party marks. A third-party trademark or logo must not be the principal visual focus, must not be more prominent than Deriv branding, and must not imply an endorsement, partnership or affiliation that does not exist. The disclaimer at F.5 applies.

L.3 Deriv marks. The licence granted by Clause 6.4 does not extend to use of "Deriv", or any confusingly similar term, in a social media handle, account name, display name, domain name or channel name. Where Campaign Content is co-branded, the words "Powered by" must appear above the Deriv logo.

L.4 Links and codes. Only the tracking links, codes, and destination URLs supplied in the Campaign Inputs may be used. They must not be shortened, redirected, cloaked, wrapped, or substituted, must not be placed behind an intermediary landing page, and must not point to any third party offering Deriv services.

Part M — Change control

M.1 This schedule may be amended only by Deriv. An amendment takes effect on publication of a new version number and applies only to Campaign Forms submitted after that date. The version accepted at submission governs that campaign for its duration.

M.2 The wording in Parts C, D, F, and H.4 is drawn from Deriv's marketing disclaimer single source of truth, reconciled to the Resolution, the Rulebook, and the Media Law. Where any of those is updated, this schedule must be reconciled to all of them before the next campaign is issued.

M.3 No Deriv employee may waive, vary or disapply a requirement in this schedule by email or in conversation. Clause 10.1 applies.

M.4 Parts G and I derive directly from Article 5 of the Resolution. An amendment to those Parts may only reflect a change in the Resolution and may not relax a requirement the Resolution imposes.


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